

CHAPTER 35

An Act to provide for the consolidation, with or without changes authorised by the Police Pensions Act, 1948, of regulations under section one of that Act; and to make further provision for the application of the regulations in relation to special constables.

[22nd June, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Without prejudice to any other power to revoke regulations made under section one of the Police Pensions Act, 1948 (in this Act referred to as "the principal Act"), the power to make regulations under that section shall include, and be deemed always to have included, power to revoke regulations previously made under that section; but regulations under the said section one which revoke previous regulations under that section, either wholly or as respects cases or matters of any description, shall contain provisions having the same effect as the provisions they revoke, except for any change (whether by way of alteration or omission) made in accordance with the principal Act.

Consolidation
of police
pensions
regulations,
etc.

11 & 12 Geo 6.
c. 24.

(2) Where any persons are receiving, or subject to any necessary claim being made and allowed are entitled to receive, benefits conferred by regulations under the said section one as applied to special constables or their dependants by an instrument made under the Special Constables Act, 1914, or section eleven of the Police (Scotland) Act, 1956, then any such instrument which revokes or otherwise changes the regulations so as to affect those benefits shall apply provisions of regulations under the said section one to those persons, either with or without modifications, so as to secure to them benefits not less advantageous than the benefits aforesaid.

4 & 5 Geo. 5.
c. 61.
4 & 5 Eliz. 2.
c. 26.

(3) Subsection (2) of section two of the principal Act (which provides for regulations not to be invalid by reason only of their failure to secure the results specified in subsection (1) of that section but requires their amendment to secure those results) shall have effect as if the reference to the said subsection (1) included a reference to the foregoing subsections and as if the references to regulations or amending regulations under section one of the principal Act included references to an instrument or amending instrument under the said Act of 1914 or the said section eleven.

(4) Subsection (2) of section eight of the principal Act (which provides that references to Acts and regulations in that Act are references to Acts and regulations as amended) shall have effect for the purposes of this section as if the first reference to that Act were a reference to this Act.

Citation
and extent.

2.—(1) This Act may be cited as the Police Pensions Act, 1961, and this Act and the principal Act may be cited together as the Police Pensions Acts, 1948 and 1961.

(2) Except for the purposes of the proviso to subsection (3) of section nine of the principal Act (which relates to payments to persons or funds in Northern Ireland), this Act shall not extend to Northern Ireland.

CHAPTER 36

Finance Act, 1961

ARRANGEMENT OF SECTIONS

PART I

CUSTOMS AND EXCISE

Section

1. Television advertisement duty.
2. Rebate on heavy oils.
3. Relief from duty on heavy oils used by horticultural producers.
4. Amendment of definition of pool betting.
5. Pool betting duty: provisions as to Isle of Man.
6. Increase of rates of vehicles excise duty.
7. Time limit for recovering under-payments and over-payments of vehicles excise duty.
8. Agricultural tractors: amendments as to carriage of produce, etc., at agricultural rate of duty.
9. Surcharges or rebates of amounts due for revenue duties.
10. Temporary continuation of Commonwealth preference for goods from Southern Cameroons.
11. Police prosecutions for offences relating to transferred duties.

PART II

INCOME TAX

12. Charge of income tax for 1961–62.
13. Surtax rates for 1960–61.
14. Surtax: reliefs for earned income.
15. Dependent relatives.
16. Income tax relief for National Insurance contributions.
17. Double taxation relief agreements: exemptions from foreign taxation to promote development.
18. Double taxation relief: provisions as to commencement of trade or source of income.
19. Relief allowable in respect of foreign local taxes.
20. Extension of s. 448 of Act of 1952.
21. Exemption from tax of certain income of pension, etc., funds for overseas employees.
22. Exemption from tax of compensation for National-Socialist persecution.
23. Capital allowances for cars costing over two thousand pounds.
24. Limit on renewals allowance for cars.